

NYCOM Handbook for Village Officials

Chapter 8: Local Legislation — Local-Law Procedure

This is a detailed summary of the local-law portions of Chapter 8, printed pages 8.1–8.7, of the *NYCOM Handbook for Village Officials* (revised March 2015). It is not a verbatim reproduction.

Source: [NYCOM Handbook for Village Officials \(2015 PDF\)](#).

When a local law is appropriate

A local law is the village's highest form of legislation and has the same effect locally as an act of the State Legislature. It is generally appropriate for:

- Changing the structure of village government.
- Transferring authority from one official or body to another.
- Departing from a statewide standard when home-rule authority permits it.
- Creating regulations enforceable through criminal or civil penalties.

Villages no longer enact ordinances. Existing ordinances should be re-adopted as local laws, and an existing ordinance may be amended or repealed only by local law.

Limits on local-law authority

A village local law must:

- Be consistent with the New York State Constitution and applicable general state laws.
- Avoid subjects classified as matters of statewide concern.
- Avoid fields that New York State has preempted through comprehensive regulation.

Restricted areas include limits on municipal debt or taxation, bond restrictions, educational systems, courts, State Comptroller audit powers, and certain transfers of sidewalk or gutter liability.

Examples of matters commonly treated as statewide concerns include taxation, highways and transportation, education, health, civil service, housing, municipal boundaries, water supply, parks, social services, and municipal debt.

Examples of preempted fields include alcoholic-beverage sales, campaign finance, drug-sale penalties, motor-vehicle driver licensing, and rules of the road.

Required form

Every local law should contain:

- A short title identifying its subject.
- The prescribed enacting clause naming the legislative body and municipality.
- The substantive provisions of the law.
- An effective-date provision.

A local law may address only one subject, although a comprehensive codification or recodification may count as one subject. Local laws are numbered consecutively by calendar year, beginning with Local Law No. 1.

Adoption procedure

Identify the need

The village identifies a local problem, determines that legislation is warranted, and confirms that a local law, rather than a resolution, is the appropriate vehicle.

Draft and review

The municipal attorney ordinarily drafts or reviews the proposed local law. Attorney drafting is not mandatory, but NYCOM strongly recommends legal review.

Satisfy the aging requirement

Before passage, the final proposed text must be:

- Placed on each board member's desk or table at least **seven days before passage**, excluding Sunday; or
- Mailed to each board member at least **10 days before passage**, excluding Sunday.

Legible electronic delivery qualifies when the proposal is available for review electronically at the members' desks. Authority: Municipal Home Rule Law § 20(4).

Message of necessity

The mayor may certify that immediate passage is necessary. This eliminates the aging period, but:

- The required public hearing must still occur.
- Passage requires a **two-thirds vote of the fully constituted board**.
- On a five-member board, this means four affirmative votes.

Notice and hold the public hearing

Before enactment, the board must conduct a public hearing with a quorum present. Notice must:

- Be published in the village's official newspaper.
- Be published at least **seven days before the hearing**.
- Include at least a summary of the proposal and the hearing's date, time, and location.

Municipal Home Rule Law § 20(5) states a five-day publication period, while Village Law § 21-2100 imposes the longer seven-day period applicable to villages.

A hearing may be adjourned without publishing a new notice. Once formally closed, however, it cannot be reopened without publishing and posting new notice.

Vote on the proposal

The board may vote after the hearing concludes. If it does not vote immediately, it must act within **62 days after the hearing's conclusion**.

Ordinary passage requires a majority of the fully constituted board:

- Five-member board: three affirmative votes.
- Seven-member board: four affirmative votes.

If the mayor used a message of necessity, passage requires a two-thirds vote.

Additional voting rules:

- Each member's vote must be entered in the minutes.
- Abstentions and absences must also be recorded.
- Members cannot vote by telephone.
- Participation by lawful videoconference is permitted.
- A member absent from the hearing may vote after reviewing the comments presented.
- A member absent for the vote cannot submit a vote afterward.

Authority: Village Law § 21-2102.

File the enacted law

Within **20 days after adoption**, the village clerk must:

- File a certified copy with the New York Secretary of State.
- Place a certified copy in a separate local-law book maintained by the village clerk.
- Index the village's filed local laws.

Authority: Municipal Home Rule Law § 27.

The state filing address stated in the handbook is:

NYS Department of State
Division of Corporations, State Records and Uniform Commercial Code
One Commerce Plaza
99 Washington Avenue
Albany, NY 12231

Effective date

A local law cannot become effective before it is filed with the Secretary of State, regardless of the effective date written into the law.

- If the law states an effective date, that date still cannot precede state filing.
- If no effective date is specified, the law takes effect **20 days after filing**.
- A law subject to referendum does not take effect until the referendum requirements are satisfied and the law is properly filed.

Authority: Municipal Home Rule Law § 27.

Referendum requirements

Some local laws are subject to a mandatory or permissive referendum under Municipal Home Rule Law §§ 23 and 24 and other statutes.

- **Mandatory referendum:** The proposal must be submitted to voters and takes effect only if approved.
- **Permissive referendum:** The proposal goes to voters only if a qualifying petition is timely filed.

A permissive-referendum law becomes effective only after the petition period expires without a valid petition and the law is filed, or after voter approval and filing.

Changes before enactment

If the board materially changes a proposed local law before enactment, the revised version generally must:

- Be reintroduced and aged for the required period.
- Receive a newly noticed public hearing.

Only genuinely minor corrections, such as punctuation, spelling, or typographical fixes, normally avoid restarting the process. Authorities cited by NYCOM include Attorney General Opinion 78-243 and State Comptroller Opinion 81-124.

SEQR review

The village must determine whether adopting the local law is an action under the State Environmental Quality Review Act.

- **Type I action:** Complete a Full Environmental Assessment Form.

- **Unlisted action:** Complete a Short or Full Environmental Assessment Form.
- **Type II action:** No further SEQR procedure is required.

Zoning laws and zoning amendments have additional procedural requirements beyond this general chapter.

Practical adoption checklist

Before adoption, verify:

- The proposal addresses only one subject.
- The subject falls within village home-rule authority.
- The proposal is consistent with the State Constitution and general state statutes.
- The subject is not a statewide concern or a preempted field.
- The proposal contains an effective date and appropriate enforcement provisions.
- Any mandatory or permissive referendum requirement has been identified.
- The municipal attorney has drafted or reviewed the text.
- SEQR applicability has been determined.
- Any special zoning-law procedure has been followed.
- The final text has satisfied the aging period or a valid message of necessity has been issued.
- Proper public-hearing notice was published and the hearing was held.
- Any material post-introduction amendment has been re-aged and presented at a newly noticed hearing.
- The vote met the applicable majority or two-thirds threshold.
- The clerk will complete state and local filing within 20 days.

Counting statutory days

Under General Construction Law §§ 20 and 25-a:

- Exclude the day on which the triggering event occurs.
- Include the final day.
- Count weekends and public holidays unless a statute specifically says otherwise.
- If the final day falls on a Saturday, Sunday, or public holiday, the act may generally be completed on the next business day.

For the seven-day aging period, Sunday is expressly excluded, while Saturdays and public holidays are counted.